

Serbia — Employment Guide

A complete reference for employers using HeroForce EOR to hire in Serbia. All figures reflect statutory rates effective 2026. Where applicable, common-practice benefits and important employer obligations are noted.

At a Glance

20 days Annual Leave	30 days Sick Leave (employer)	7+ Public Holidays	40 hrs/wk Standard Hours
90 days Probation	15–30 days Notice Period	~15% Employer On-Cost	M+7 Pay Date

Working Hours

Standard working week	40 hours.
Overtime hours	Maximum 8 hours per week and 4 hours per day. Employees must work overtime as per reasonable request by the employer.
Overtime pay	No statutory overtime rate — set by employment contract. A premium typically applies for hours beyond standard working time.

Source: Labour Law of the Republic of Serbia.

Annual Leave

Statutory minimum	20 working days paid leave per year.
Enhanced entitlement	Can be increased by up to 5 additional days depending on employer policy.
Leave accrual	Employees accrue leave from their first day of employment.
Leave carry forward	Unused leave must be used by 30 June of the following year.
Annual bonus / 13th month	13th month pay is NOT mandatory in Serbia. Bonuses are entirely at employer discretion.

Source: Labour Law of the Republic of Serbia.

Sick Leave

Duration — employer funded	First 30 days of sick leave are covered and paid by the employer.
Duration — state funded	From day 31 onwards, sick leave pay is covered by the State Health Fund (RFZO).
Medical documentation	Employees are expected to provide medical certification. Occupational health involvement as required.

Source: Labour Law and Health Insurance Law, Republic of Serbia.

Public Holidays (Serbia — 2026)

Date	Holiday	Notes
1–2 Jan	New Year's Day (Nova godina)	
7 Jan	Orthodox Christmas (Bozic)	
15 Feb	Statehood Day — Day 1	
16 Feb	Statehood Day — Day 2	
18 Apr	Good Friday (Orthodox)	
20 Apr	Easter Sunday (Orthodox)	
21 Apr	Easter Monday (Orthodox)	
1–2 May	Labour Day	
11 Nov	Armistice Day (Dan primirja)	

Serbia has 7 national public holidays plus religious holidays including Orthodox Christmas and Orthodox Easter. Employees required to work on public holidays are entitled to a day in lieu or premium pay as agreed.

Parental & Family Leave

Maternity leave	12 months of paid leave. At least 28 days must be taken before the child's birth. Paid by the state (Republic Fund for Social Insurance) based on the employee's average salary.
Paternity leave	5 working days.
Compassionate leave	5 working days.
Wedding leave	5 working days.
Job protection	Employees on maternity or parental leave are protected against dismissal during the leave period.

Source: Labour Law of the Republic of Serbia; Law on Financial Support to Families with Children.

Probation Period

Standard probation	Varies from 15 to 90 days. The general norm and market standard is 90 days.
Notice during probation	No notice period is required during probation. Either party may terminate immediately.
Requirement	Probation period must be explicitly stated in the employment contract.

Source: Labour Law of the Republic of Serbia, Art. 36.

Notice Periods

Party	Notice Period	Notes
Employer	15–30 days	Depends on employee seniority and employment contract.
Employee (resignation)	30 days	As typically stated in employment contract.
During probation	None (immediate)	Applies to both parties.

Source: Labour Law of the Republic of Serbia, Art. 179–189.

Termination & Severance

Employers in Serbia can terminate employees based on valid grounds. Termination without valid grounds may be considered unfair dismissal and can lead to legal consequences.

Termination scenarios	1. Employee resignation 2. Mutual agreement between employee and employer 3. Termination during probationary period 4. Employer termination due to misconduct, performance issues, or absence without leave.
Notice — during probation	No notice required. Immediate termination by either party.
Notice — after probation	15–30 days depending on employee seniority.
Severance pay (otpremnina)	Minimum one-third of the employee's average monthly salary (based on last 3 months) per completed year of service. Minimum gratuity: 1 month's salary per year of service, up to 5 years. Maximum gratuity: 6 months' salary per year of service, up to 30 years.
Protected categories	Employees on maternity/parental leave and works council members have enhanced dismissal protection.
HeroForce note	HeroForce manages the full termination process including documentation, statutory notices, severance calculation, and all required filings on your behalf.

Source: Labour Law of the Republic of Serbia, Art. 158–189.

Pay Date, Minimum Wage & Tax Overview

Payout currency	Serbian Dinar (RSD).
Payroll cycle	Monthly — paid on M+7 (7th of the following month).
Expenses cut-off	15th of the month.
Onboarding cut-off	20th of the month.
Minimum wage (2026)	RSD 371 per hour, effective 1 January 2026.
Income tax — individual	Tax-free threshold: annual income up to RSD 3,268,224 (~€27,800) — no tax payable. 10% rate: income above threshold up to RSD 7,438,752 (~€63,100). 15% rate: any income above RSD 7,438,752.
Employer social contributions (~15%)	Pension insurance: 10.0% of gross salary. Health insurance: 5.15% of gross salary. Total: approximately 15.15% on top of gross salary.
Employee social contributions (~20%)	Pension: 14.0% Health: 5.15% Unemployment: 0.75% Total: ~19.9% of gross salary.
13th month salary	Not statutory. Common only where contractually agreed.
VAT	Not applicable to employment costs.

Source: Serbian Tax Administration; Personal Income Tax Law; Mandatory Social Insurance Law.

Health Coverage & Benefits

Public health insurance	Mandatory for all employees in Serbia, overseen by the National Health Insurance Fund (NHIF/RFZO). Funded through statutory social contributions.
Private health insurance	Optional. Local providers available covering inpatient, outpatient, maternity, vision, and dental. Global insurance provider plans also available covering inpatient, outpatient, mental health, complementary therapies, dental, vision, screenings, vaccines, and maternity. Premiums from approximately USD 900 per annum. Charged annually — additional cost above EOR fee.
Social security (Socijalno Osiguranje)	Covers healthcare, pension, family support, unemployment, and other social benefits.
HeroForce note	HeroForce can connect employees to local and global private health insurance providers and manage enrolment on your behalf.

Source: Health Insurance Law; Pension and Disability Insurance Law, Republic of Serbia.

Onboarding

Onboarding time	Complete onboarding process takes approximately 7–9 working days.
Private health insurance enrolment	Enrolment can take up to 20 working days from the employee’s start date.

Powered by HeroForce EOR

HeroForce by Employment Hero handles every layer of Serbian compliance — employment contracts, monthly payroll, Tax Administration filings, social insurance registration, and full ongoing HR support — so you can onboard Serbia-based employees in 7–9 business days without opening a local entity.

Contact your HeroForce account manager or visit heroforce.com